

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



March 16, 2020

The Honorable Jon Kapetan
Judge of the Superior Court
County of Fresno
1100 Van Ness Avenue
Fresno, CA 93724

Re: Yeng Xiong
CDCR No: AA5155
Case No: F07908923
Date of Sentence: August 18, 2009

Dear Honorable Jon Kapetan:

The purpose of this letter is to provide the court with the authority to resentence inmate Yeng Xiong, AA5155, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

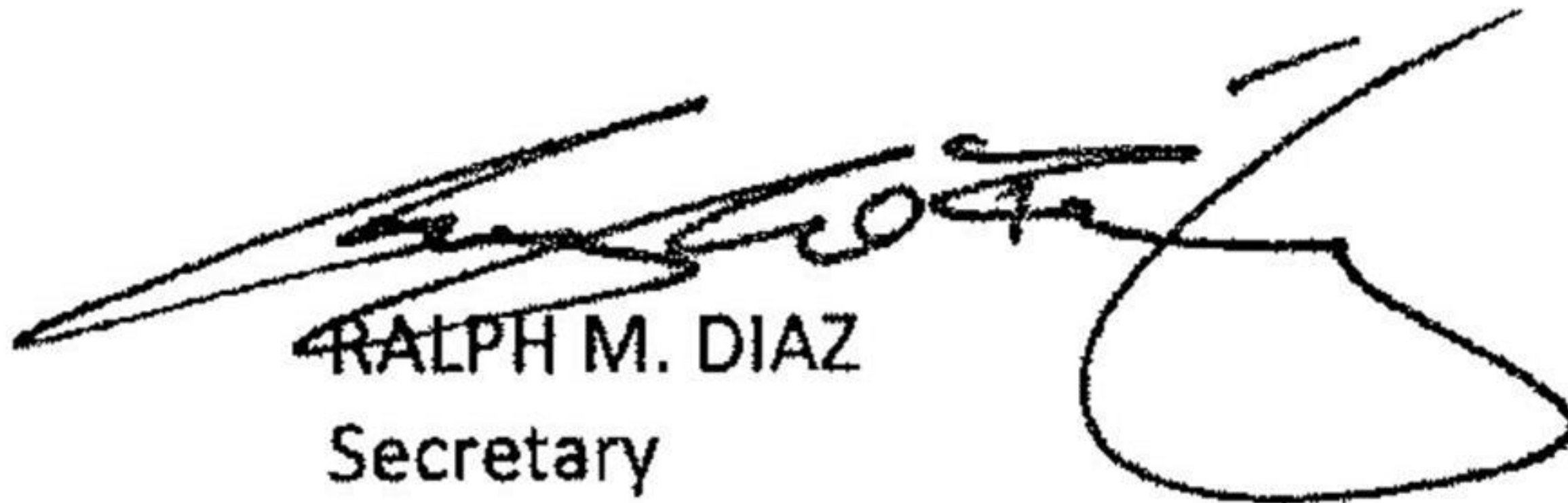
Inmate Xiong has received two Rules Violation Reports since being received to CDCR on August 26, 2009, however, he has remained disciplinary free since June of 2015. Inmate Xiong is currently assigned as Vocational Computer and Related Technology student. Inmate Xiong also participates in College (correspondence), Narcotics Anonymous, Criminal and Gang Members Anonymous and has received 15 Laudatory Chrono's from these group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups. Inmate Xiong met the standards of the General Educational Development and received his High School Equivalency Certificate at Pleasant Valley

The Honorable Jon Kapetan
Page 2

State Prison. Staff indicate inmate Xiong keeps to himself, programs throughout the day, and abides by all the rules.

Having reviewed the enclosed documentation it appears that inmate Xiong's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Alan M. Simpson, Presiding Judge
Fresno County District Attorney's Office
Fresno County Public Defender's Office